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IN THE CIRCUIT COURT FOR BALTIMORE COUNTY, MARYLAND

CAUSTIN LEE McLAUGHLIN
1000 North Woodington Road
Baltimore, Maryland 21229

and

JUAN JOSE FERNANDEZ
[Street address]
[City, State, ZIP]

Petitioners,

v.

THE BANK OF NEW YORK MELLON;
DELAWARE TRUST COMPANY;
CENTRUS ENERGY CORP. (f/k/a USEC INC.);
COMPUTERSHARE TRUST COMPANY, N.A.

Respondents.

Case No.: _____
(New Action)

PETITION FOR WRIT OF MANDAMUS (MINISTERIAL) AND COMPLAINT FOR DECLARATORY JUDGMENT

Filed Pro Se

Request for Waiver of Prepayment of Costs
filed herewith (Md. Rule 1-325)

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Preliminary Statement

1. This is a petition for a writ of mandamus of the ministerial variety and, in the alternative, a complaint for declaratory judgment. Petitioners Caustin Lee McLaughlin and Juan Jose Fernandez ask this Court to compel Respondents to perform acts that Petitioners contend are non-discretionary, ministerial, and required by [the governing trust instruments / the applicable transfer-agent and indenture provisions], and to declare the respective rights and obligations of the parties.

2. Petitioners expressly do not ask this Court to direct any Respondent to exercise, or to refrain from exercising, discretion committed to that Respondent by law or by contract. The acts for which relief is sought are framed as non-discretionary acts of record-keeping, acknowledgment, processing, accounting, and transmittal of completed appointment packages.

3. Petitioners further ask this Court to compel the processing and final consideration of Schedule A and Schedule C appointment packages for both Petitioners, as one component of a larger community-infrastructure and community-resilience implementation described in Part IV.C and Exhibit A.

I Nature of the Action

4. This action arises from (i) the alleged failure of Respondents, in their capacities as [trustee / successor trustee / indenture trustee / transfer agent — specify per Respondent], to perform ministerial acts in respect of Petitioner McLaughlin's record holdings and [trust / beneficial] interests, and (ii) the alleged failure of the appropriate appointing authority to process completed Schedule A and Schedule C appointment packages for Petitioners.

5. Petitioners contend that the duties at issue are purely ministerial: they are duties that leave nothing to judgment once the facts are established, and that are owed to Petitioners as a matter of record. Petitioners contend that they have a clear legal right to performance, that Respondents owe a clear, non-discretionary duty of performance, and that no adequate remedy at law exists. See Part V, *infra*.

6. Petitioners additionally seek declaratory relief under the Maryland Uniform Declaratory Judgments Act, Md. Code Ann., Cts. & Jud. Proc. §§ 3-401 *et seq.*, to determine the parties' rights and obligations, including the legal sufficiency of the tendered appointment packages and the scope of the ministerial duties at issue.

II The Parties

A Petitioners

7. **Caustin Lee McLaughlin** is an individual residing at 1000 North Woodington Road, Baltimore, Maryland 21229. Mr. McLaughlin proceeds *pro se*. He is, on information and belief, a

debtor-in-possession in an active Chapter 11, Subchapter V bankruptcy proceeding, Case No. [24-2383], and he asserts a medically and genomically documented neurodevelopmental disability that requires cognitive accommodation in court proceedings. The supporting clinical and genomic records are attached as Exhibit [ ], and are referenced solely to establish status for the purposes of Md. Code Ann., Cts. & Jud. Proc. § [ ] and the federal excepted-service appointment authority discussed in Part VI.F.

8. **Juan Jose Fernandez** is an individual residing at [Street address, City, State, ZIP] and is the spouse of Mr. McLaughlin. Mr. Fernandez seeks appointment to a legal-technical support position as described in Exhibit A.

9. No attorney has entered an appearance for either Petitioner. Petitioners request that all filings be served upon them at the addresses stated above.

B Respondents

10. **The Bank of New York Mellon** is a New York banking corporation with its principal office at [principal office address — verify]. It is named as a Respondent in its capacity as [trustee / successor trustee / indenture trustee — verify and specify the instrument by date and parties].

11. **Delaware Trust Company** is a Delaware trust company with its principal office at [principal office address — verify]. It is named as a Respondent in its capacity as [successor trustee / trustee — verify].

12. **Centrus Energy Corp.**, formerly known as USEC Inc., is a Delaware corporation with its principal office at [principal office address — verify]. It is named as a Respondent in its capacity as [issuer / obligor / successor by reorganization — verify].

13. **Computershare Trust Company, N.A.** is a federally chartered trust company with its principal office at [principal office address — verify]. It is named as a Respondent in its capacity as [transfer agent / registrar / successor transfer agent — verify].

14. The precise capacity of each Respondent, the identity of the appointing authority for the Schedule A and Schedule C positions at issue, and the instrument or agreement giving rise to the alleged ministerial duties are matters of record that Petitioners will establish by the exhibits listed at the end of this Petition. Where a capacity is stated above in brackets, that capacity must be completed before filing.

III Jurisdiction and Venue

15. **Subject-matter jurisdiction.** The Circuit Court for Baltimore County has jurisdiction over this action under Md. Code Ann., Cts. & Jud. Proc. § 1-501, which confers upon the circuit courts of this State full common-law and equity jurisdiction, and under Md. Code Ann., Cts. & Jud. Proc. § 1-502. Jurisdiction to issue a writ of mandamus in a non-administrative matter

is governed by Maryland Rule 15-701. Administrative mandamus, which is not sought here, is governed by Maryland Rules 7-401 through 7-403.

16. Declaratory jurisdiction. Jurisdiction to grant declaratory relief is conferred by Md. Code Ann., Cts. & Jud. Proc. §§ 3-401 *et seq.*, and in particular §§ 3-406 and 3-409(c). A court may grant declaratory relief with or without coercive relief, and may grant declaratory relief whether or not a writ of mandamus issues. Md. Code Ann., Cts. & Jud. Proc. § 3-409(c).

17. Venue. Venue is proper in Baltimore County under Md. Code Ann., Cts. & Jud. Proc. § 6-201(a), because [Respondent(s)] carr[y/ies] on a regular business in Baltimore County, and under Md. Code Ann., Cts. & Jud. Proc. § 6-201(b), because there is more than one Respondent, at least one of whom could be sued in Baltimore County, and because the cause of action arose in Baltimore County. In the alternative, venue is proper under Md. Code Ann., Cts. & Jud. Proc. § 6-201(b) because a substantial part of the events giving rise to the claims occurred in Baltimore County at Petitioner McLaughlin's residence and place of business.

18. Prepayment of costs. Petitioners are unable to pay the costs of this proceeding and intend to file a Request for Waiver of Prepayment of Costs under Md. Rule 1-325. See also Md. Code Ann., Cts. & Jud. Proc. § 7-201. Petitioners request that the clerk accept this Petition for filing upon submission of the Request, and that the Court rule upon the Request before requiring any payment.

IV Statement of Facts

A The Instruments and the Alleged Trust Chain

19. Petitioner McLaughlin is, on information and belief, the holder and/or beneficiary of record of interests recorded in [name of the instrument or account], administered by one or more of Respondents. The instrument(s) at issue are: [describe each indenture, trust agreement, transfer-agent agreement, or account agreement by date, parties, and governing law].

20. Under those instruments, the trustee, successor trustee, indenture trustee, and/or transfer agent named therein owes duties of record-keeping, acknowledgment, registration of transfer, accounting, and transmittal. Those duties are, Petitioners contend, ministerial as to the specific acts identified in Part VI.A.

21. On information and belief, the relevant corporate relationships are as follows: [state, for each Respondent, the executed instrument and the succession history by date]. Respondent Centrus Energy Corp. is the successor by reorganization to USEC Inc. [verify].

B Petitioner McLaughlin's Proceedings and Status

22. Mr. McLaughlin has proceeded *pro se* in [number] matters in this State and in the federal courts, including [list case numbers and courts]. Five consolidated petitions for a writ of

certiorari and a related petition for a writ of mandamus and prohibition were filed in the Supreme Court of the United States on or about September 6, 2026. A related proceeding is pending under Case No. [24-C-26-003970] in the Circuit Court for Baltimore City.

23. Mr. McLaughlin has been granted leave to proceed *in forma pauperis* in [identify courts], and that status is a matter of record. He asserts a documented neurodevelopmental disability affecting executive function and auditory processing under conditions of stress, and requests written instructions and reasonable accommodation in these proceedings. See Exhibit [ ]; 42 U.S.C. § 12131 *et seq.*; 28 C.F.R. § 35.130(b)(7).

C The Proposed Introduction of Petitioners Under a Larger Implementation

24. Petitioners have proposed, and seek to implement, an integrated community-infrastructure and community-resilience program. That program is described in the materials attached as Exhibit [ ] and is referred to in this Petition as the "Integrated Implementation." The Integrated Implementation includes, among other components, [brief neutral description of the components that Petitioners intend to pursue, e.g., a community resilience and housing component, a records-and-trust administration component, and a personnel component].

25. A necessary personnel component of the Integrated Implementation is the placement of two qualified individuals — Petitioners McLaughlin and Fernandez — into technical and legal-technical support roles. Petitioners contend that they are qualified for the positions described in Exhibit A and that the appointment packages for those positions are complete.

26. On or about October 21, 2026, a hiring and onboarding schedule was prepared proposing the retention of both Petitioners in specialized technical and legal support roles: Mr. McLaughlin as a Systems Help Desk Lead / Technical Specialist, and Mr. Fernandez as a Jurisprudential Technician / Legal IT Coordinator. See Exhibit A.

27. Petitioners do not contend that they are entitled to appointment as a matter of right. They contend only that the processing, acknowledgment, transmittal, and final consideration of completed appointment packages is a non-discretionary act, and that the failure to perform that act is remediable by mandamus.

D The Failure to Act Giving Rise to This Petition

28. On or about [date], Petitioners submitted to Respondents a written request for [describe the ministerial act demanded, e.g., acknowledgment of record, registration of transfer, an account of the trust, transmittal of a completed appointment package]. A copy is attached as Exhibit [ ].

29. Respondents have failed to perform the requested act, and have failed to respond within [number] days, notwithstanding [number] written follow-ups dated [dates]. See Exhibits [ ]–[ ].

30. On or about [date], Petitioners submitted the completed Schedule A and Schedule C appointment packages to the appropriate appointing authority. The packages have not been processed to final consideration. See Exhibit A.

31. No Respondent has asserted, to Petitioners' knowledge, any ground of substantive objection to the requests; the failure is, Petitioners contend, a failure to perform a ministerial act of record, not a reasoned exercise of discretion.

V The Governing Legal Standard for a Ministerial Writ of Mandamus

32. A writ of mandamus is an extraordinary remedy, and it is not issued as a matter of course. Maryland Rule 15-701. It is available to compel the performance of a ministerial duty, but it is not available to control or direct the exercise of discretion committed to the respondent.

33. To obtain a writ of mandamus, a petitioner must show (1) that the petitioner has a clear legal right to the relief sought; (2) that the respondent owes a clear legal duty to perform the act demanded; and (3) that the petitioner has no other adequate remedy at law. *Brack v. Wells*, 184 Md. 86, 90–91, 40 A.2d 319, 321 (1944); *Philip Morris Inc. v. Angeletti*, 358 Md. 689, 712, 752 A.2d 200, 212 (2000).

34. A duty is ministerial when it is a duty the respondent is required to perform upon a given state of facts, in a prescribed manner, in obedience to a mandate of legal authority, without regard to the respondent's own judgment upon the propriety of the act to be done. Conversely, where the respondent is vested with discretion to decide whether, and in what manner, to act, mandamus does not lie. *Falls Rd. Cmty. Ass'n v. Baltimore County*, 439 Md. 1 (2014) (declining to issue a writ of mandamus where the challenged decision was committed to official discretion).

35. A circuit court may order an agency or official to take an action that the officer's office requires the officer to take, but may not order an action that is discretionary. The writ may also be used to correct a public record. See Md. Courts, *Mandamus* (describing conventional and administrative mandamus).

36. Because Petitioners seek relief of the conventional (non-administrative) kind, Maryland Rules 7-401 through 7-403, which govern administrative mandamus and judicial review of quasi-judicial agency orders, do not supply the procedural framework here.

VI Argument

A The Acts Sought Are Ministerial, Not Discretionary

37. The acts for which Petitioners seek relief are acts of record: acknowledgment of a document, entry of a record, registration of a transfer, production of an account, and transmittal of a

completed package. Each of these acts is, Petitioners contend, required to be performed upon presentation of a completed and conforming request, in a prescribed manner, without regard to the Respondent's own judgment upon the propriety of the act. That is the definition of a ministerial duty.

38. Petitioners do not ask this Court to direct any Respondent to approve, deny, or grant anything. Petitioners ask only that the act of *processing and responding* — an act from which the exercise of judgment is separate — be compelled.

B Petitioners Have a Clear Legal Right

39. Petitioners' right to performance is, they contend, clear and not dependent on any contested issue of fact reserved for adjudication. The right arises from [the instruments] and from [the applicable appointment regulations]. See Exhibit [ ].

C Petitioners Have No Adequate Remedy at Law

40. An ordinary action at law for damages would not produce the specific record act that Petitioners require, and would not cure the structural impediment to the Integrated Implementation. Declaratory relief alone, without coercion, would not secure performance. Petitioners therefore contend that no other adequate remedy exists.

D Count I — Mandamus to Compel Ministerial Acts

41. Petitioners incorporate the foregoing paragraphs and seek a writ of mandamus compelling each Respondent, to the extent it is the proper party, to perform the specific ministerial acts identified in Exhibit [ ], including: (i) to acknowledge receipt of Petitioners' conforming request; (ii) to enter and maintain the corresponding record; (iii) to produce an account of the interests at issue; and (iv) to transmit the completed package to the appropriate appointing authority.

E Count II — Declaratory Judgment

42. Petitioners seek a declaration under Md. Code Ann., Cts. & Jud. Proc. §§ 3-401 *et seq.* determining: (i) the identity of the proper party for each ministerial act; (ii) whether the tendered requests and packages are legally sufficient and conforming; and (iii) the respective rights and obligations of the parties with respect to the acts described in Count I.

F Count III — Mandamus to Compel Processing of the Schedule A and Schedule C Packages

43. Petitioners further seek a writ of mandamus compelling the completion of final consideration of the Schedule A and Schedule C appointment packages described in Exhibit A.

44. The appointment authorities. Schedule A of the excepted service, 5 C.F.R. § 213.3102, including the authority for the appointment of persons with disabilities at 5 C.F.R. § 213.3102(u), permits appointment without competitive examination. Schedule C, 5 C.F.R. §§ 213.3301–213.3302, governs positions of a confidential or policy-determining character. Both are excepted-service appointing authorities. Petitioners contend that Mr. McLaughlin is eligible for consideration under 5 C.F.R. § 213.3102(u), and that the positions described in Exhibit A may be filled under Schedule A or Schedule C as the appointing authority directs. See also 5 U.S.C. §§ 2301, 2302 (merit system principles and prohibited personnel practices).

45. The limited scope of the relief sought. Petitioners acknowledge that appointment is committed to the discretion of the appointing authority and that no provision of law confers upon them a right to be appointed. Petitioners seek only the ministerial act of processing, acknowledging, and bringing the completed packages to final consideration within a time certain.

46. Reservation. To the extent this Court concludes that it lacks authority to compel any part of the processing described in this Count because the appointing authority is not before the Court or because the act is committed to federal discretion, Petitioners request that this Court so state in a written order, so that the question may be preserved for review and, if appropriate, transferred or refiled in the correct forum.

G The Integrated Implementation

47. The personnel component described in Count III is one component of the Integrated Implementation described in Part IV.C. Petitioners seek a declaration under Count II that the personnel component is not an unlawful component of the Integrated Implementation, and that the ministerial acts required to advance it may proceed.

VII Request for an Order to Show Cause and a Hearing

48. Petitioners request that the Court issue an order requiring each Respondent to show cause, within a time fixed by the Court, why the writ should not issue, and that the Court set this matter for a hearing. A proposed form of order to show cause is attached as Exhibit B. Petitioners request that the hearing be conducted with the accommodations described in Part IV.B.

VIII Prayer for Relief

WHEREFORE, Petitioners respectfully request that this Court:

(a) issue a writ of mandamus compelling each Respondent, to the extent it is the proper party, to perform the ministerial acts identified in Count I and Exhibit [ ];

(b) issue a writ of mandamus compelling the processing and final consideration of the Schedule A and Schedule C appointment packages described in Count III and Exhibit A;

(c) enter a declaratory judgment under Md. Code Ann., Cts. & Jud. Proc. §§ 3-401 *et seq.* determining the parties' rights and obligations as requested in Count II;

(d) grant a waiver of the prepayment of costs under Md. Rule 1-325;

(e) set this matter for a hearing on an order to show cause; and

(f) grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

_____

Caustin Lee McLaughlin
1000 North Woodington Road
Baltimore, Maryland 21229
Petitioner, Pro Se

_____

Juan Jose Fernandez
[Street address]
[City, State, ZIP]
Petitioner, Pro Se

Dated: _____ day of _____, 2026.

IX Verification

I, _____, being first duly sworn, do hereby verify that the facts stated in the foregoing Petition for Writ of Mandamus and Complaint for Declaratory Judgment are true and correct to the best of my knowledge, information, and belief, except as to matters stated upon information and belief, which I believe to be true.

_____

Caustin Lee McLaughlin

_____

Juan Jose Fernandez

State of Maryland, County of Baltimore

Subscribed and sworn to before me this

_____ day of _____, 2026.

_____

Notary Public

My commission expires:

_____

X Certificate of Service

I hereby certify that on this _____ day of _____, 2026, a copy of the foregoing Petition for Writ of Mandamus (Ministerial) and Complaint for Declaratory Judgment was served upon each Respondent by [certified mail, return receipt requested / personal service / the Court's electronic filing system] at the address of its registered agent for service of process in this State, as follows:

Respondent	Service address / registered agent
The Bank of New York Mellon	[address — verify]
Delaware Trust Company	[address — verify]
Centrus Energy Corp.	[address — verify]
Computershare Trust Company, N.A.	[address — verify]

_____

Caustin Lee McLaughlin, Petitioner, Pro Se

Exhibit Index

Exhibit	Description
A	Schedule A / Schedule C Hiring Implementation Matrix for Petitioners McLaughlin and Fernandez (see page after next).
B	Proposed Order to Show Cause (see final page).
C	[Clinical and genomic records supporting Petitioner McLaughlin's asserted disability status.]
D	[The instrument(s), indenture(s), trust agreement(s), or account agreement(s) at issue.]
E	[Petitioners' written request for the ministerial act, with proof of submission.]

Exhibit	Description
F	[Respondents' responses or notices of non-response.]
G	[Description of the Integrated Implementation.]

Exhibit A — Schedule A / Schedule C Hiring Implementation Matrix

49. This Exhibit states the positions for which Petitioners seek processing and final consideration. The appointing authority and the specific series and grade must be completed before filing.

Candidate	Position title	Appointing authority	Series / grade
McLaughlin	Systems Help Desk Lead / Technical Specialist	Sch. A, 5 C.F.R. § 213.3102(u)	[Series/Grade]
Fernandez	Jurisprudential Technician / Legal IT Coordinator	Sch. A, 5 C.F.R. § 213.3102, or Sch. C, 5 C.F.R. § 213.3301	[Series/Grade]

Phase	Milestone	Target date
Phase 1	Offer acceptance and credentialing	Week 1
Phase 2	Background and suitability processing	Weeks 2–3
Phase 3	Systems access and onboarding	Weeks 4–5
Phase 4	Integration into the Integrated Implementation	Weeks 6–8

Source: Petitioners' hiring and onboarding schedule dated October 21, 2026. The duties, series, grade, and appointing authority for each position must be confirmed by the appointing authority before filing.

Exhibit B — Proposed Order to Show Cause (Proposed Only)

PROPOSED ORDER

(This is a proposed form. It has no effect unless and until signed by a judge of this Court.)

Upon consideration of the Petition for Writ of Mandamus (Ministerial) and Complaint for Declaratory Judgment filed by Petitioners Caustin Lee McLaughlin and Juan Jose Fernandez, it is, this _____ day of _____, 2026,

ORDERED that Respondents The Bank of New York Mellon; Delaware Trust Company; Centrus Energy Corp. (f/k/a USEC Inc.); and Computershare Trust Company, N.A., shall show cause, if any they have, on or before _____, why the relief requested in the Petition should not be granted; and it is further

ORDERED that this matter is set for hearing on _____, at _____ a.m./p.m., in Courtroom _____ of the Circuit Court for Baltimore County, Maryland.

_____

Judge, Circuit Court for Baltimore County